

26SMCP00212 26SMCP00212

County: los-angeles

Division: Civil Law and Motion

Department: 205

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Case Number: 26SMCP00212 Hearing Date: July 16, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles

Beverly Hills Courthouse | Department 205

BENJAMIN JULIUS,

Plaintiff,

v.

LOGAN STANTON,

Defendant.

Case No.:

26SMCP00212

Hearing Date: 07/16/26

Trial Date:

N/A

[TENTATIVE] RULING RE:

MOTION FOR ASSIGNMENT ORDER.

Background

On April

24, 2026, Plaintiff and judgment creditor Benjamin Julius filed an application for entry of judgment on sister-state judgment against Defendant and judgment debtor Logan Stanton. The prior judgment was entered on June 26, 2023, by the Supreme Court of the State of New York, County of Kings (No. 520479/2020). Judgment Creditor is seeking a total of \$57,243.00 to be entered (\$45,311.00 unpaid sister-state judgment; \$435.00 filing fee; and \$11,497.00 accrued interest on sister-state judgment.)

On April 30, 2026, the Court entered judgment in favor of Judgment Creditor in the amount of \$57,243.00 pursuant to Code of Civil Procedure section 1710.25.

On June 11, 2026, Judgment Creditor filed this motion for assignment order.

No opposition has been filed as of July 12, 2026.

Legal Standard

Code of Civil Procedure section 708.510, subdivision (a) states, in relevant part:

“(a) Except as otherwise provided by law, upon application of the judgment creditor on noticed motion, the court may order the judgment debtor to assign to the judgment creditor or to a receiver appointed pursuant to Article 7 (commencing with Section 708.610) all or part of a right to payment due or to become due, whether or not the right is conditioned on future developments, including but not limited to the following types of payments:

(1) Wages due from the federal government that are not subject to withholding under an earnings withholding order.

(2)

Rents.

(3)

Commissions.

(4)

Royalties.

(5)

Payments due from a patent or copyright.

(6)

Insurance policy loan value."

In

determining whether to order an assignment, the court may take into consideration all relevant factors, including the following:

"(1) The

reasonable requirements of a judgment debtor who is a natural person and of persons supported in whole or in part by the judgment debtor.

(2) Payments

the judgment debtor is required to make or that are deducted in satisfaction of other judgments and wage assignments, including earnings assignment orders for support.

(3) The amount remaining due on the money judgment.

(4) The

amount being or to be received in satisfaction of the right to payment that may be assigned."

(Code Civ. Proc., § 708.510(c).)

Code of Civil Procedure section 708.520 provides that "[w]hen an application is made pursuant to Section 708.510 or thereafter, the judgment creditor may apply to the court for an order restraining the judgment debtor from assigning or otherwise

disposing of the right to payment that is sought to be assigned.” (Code Civ. Proc., § 708.520, subd. (a).) “The court may issue an order pursuant to this section upon a showing of need for the order. The court, in its discretion, may require the judgment creditor to provide an undertaking.” (Id., § 708.520, subd. (b).)

Analysis

Judgment

Creditor moves for an order instructing Judgment Debtor to assign all rights to payment due or to become due from Wilhelmina Models LA (“Wilhelmina”) up to the amount required to satisfy the outstanding judgment to Judgment Creditor. (Memo., at p. 4.)

On

April 30, 2026, judgment was entered against Judgment Debtor in the amount of \$57,243.00 pursuant to Code of Civil Procedure section 1710.25. (Memo., at p. 1; Grundon Decl., at p. 2.) Judgment Debtor has made no payment towards the judgment, and as of the date of this motion, the current balance is \$57,901.68 (10% per annum interest). (Memo., at p. 2; Grundon Decl., at p. 2.) Judgment Creditor contends that Judgment Debtor’s modeling fees and agency commissions due from Wilhelmina are assignable pursuant to Code of Civil Procedure section 708.510, subdivision (a). (Mot., at p. 3 [“including ‘commissions’ (subd. (a)(3)).”]; Grundon Decl., at p. 2, Exh. B [Judgment Debtor’s composite card identified her “as a Wilhelmina model...[b]ased on the foregoing, I am informed and believe that Wilhelmina books Judgment Debtor for paid modeling engagements and remits modeling fees and commission to her, or for her benefit, on a recurring basis. These are existing and recurring rights to payment within the meaning of Code of Civil Procedure section 708.510.”].)

Pursuant

to Civil Code section 954, “[a] thing in action, arising out of the violation of a right of property, or out of an obligation, may be transferred by the owner.” Thus, since Judgment Debtor’s right to payments from Wilhelmina arise presumably from a contract, they are assignable. In addition, Code of Civil Procedure section 708.510, subdivision (a)’s list is not exhaustive (“including but not limited to”). Based on the foregoing, Judgment Creditor has shown that Judgment Debtor is entitled to receive modeling fees and agency commissions from Wilhelmina, to which Judgment Creditor has a right of assignment to enforce the judgment.

The Court

also considers the factors under Code of Civil Procedure section 708.510, subdivision (c). The judgment balance (\$57,901.68) remains unpaid.

Judgment Creditor represents that it is unaware of any other judgments or wage assignments with priority. Judgment Debtor continues to work as a model and earns ongoing commissions from Wilhelmina. No opposition was filed, and there is no evidence of dependents or living expenses that would justify limiting the assignment. The Court therefore finds the factors support the assignment order.

Accordingly,

the motion for an assignment order is GRANTED.

Conclusion

The Court GRANTS Judgment Creditor Benjamin Julius' Motion for Assignment Order.

Dated: July 16, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court